

HOUSE No. 790

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas M. Stanley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to support quality improvement in nursing homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 790

By Representative Stanley of Waltham, a petition (accompanied by bill, House, No. 790) of Thomas M. Stanley relative to providing technical assistance to long-term care facilities. Elder Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to support quality improvement in nursing homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of General Laws is hereby amended by inserting after section 73B the
2 following section:-

3 Section 73C. (a) The commissioner shall establish a Long-Term Care Facility Quality
4 Improvement Team that shall be responsible for identifying and providing technical assistance to
5 long-term care facilities pursuant to section 72E of said chapter 111 as amended by section 14 of
6 Chapter 197 of the Acts of 2024 that may require interventions to prevent the decline of health
7 and safety of residents or the disruption of necessary health care services at the long-term care
8 facility. The Long-Term Care Facility Quality Improvement Team shall comprise of individuals
9 with relevant expertise in long-term care administration and management, nursing care, infection
10 prevention, social work, quality improvement, and continuing professional education. The Long-
11 Term Care Facility Quality Improvement Team's role shall not include inspection and
12 enforcement of regulatory standards and the authority to penalize a long-term care facility.

13 (b) The commissioner shall establish specific criteria by which a long-term care facility
14 may be evaluated for operational and financial soundness, and the thresholds at which it may be
15 considered to be in operational or financial distress or at risk of operational or financial distress.

16 (c) When a survey or inspection conducted, or complaint received by the department,
17 through its division of health care facility licensure and certification, or by any other individual
18 in the department, identifies a long-term care facility at risk of operational or financial distress
19 based on any of the indicators established pursuant to subsection (b), the commissioner may
20 dispatch the Long-Term Care Facility Quality Improvement Team to evaluate the long-term care
21 facility and advise the facility as to any corrective measures it should take to resolve issues
22 contributing or leading to operational or financial distress.

23 (d) Any facility to which a Long-Term Care Facility Quality Improvement Team is
24 dispatched shall:

25 (1) cooperate with the team; and

26 (2) grant the team and the Long-Term Care Facility Quality Improvement Team; and
27 DPH access to all physical plant operations and locations to all financial, operational, and
28 programmatic information requested thereby.

29 (e) The Commissioner may adopt rules and regulations as are necessary to effectuate the
30 provisions of this section.